# STANDARD OCCUPANCY AGREEMENT

For general boarding houses under the Boarding Houses Act 2012

| | |
|---|---|
| **Between — Proprietor** | Sam Sample |
| **Resident** | Jordan Example |
| **For — Room** | Room 3, first floor rear |
| **Address** | 9 Sample Road, Exampletown NSW 2000 |

The resident's room is:

☐ unfurnished ☒ furnished (if furnished, an inventory can be attached)

Other areas of the premises available for the resident's use:

☒ Kitchen/s ☒ Bathroom/s ☒ Common room ☒ Laundry ☐ Other: _____

## Term of Contract

| | |
|---|---|
| **Commencement Date** | 15/07/2025 |
| **Term of agreement (if any)** | 6 months (ends 15/01/2026) |

## Occupancy Fee

| | |
|---|---|
| **To be paid** | Direct credit to the proprietor. Account name: Sam Sample. BSB: 000-000. Account number: 00000000. Reference: Jordan Example - 9 Sample Road, Exampletown NSW 2000. |
| **$ per** | $420.00 per |

Occupancy fee period: ☒ week ☐ month ☐ year

## Proprietor's Contact Details:

Sam Sample
1 Sample Street, Exampletown NSW 2000
0400000000
sam.sample@example.com

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## AGREEMENT TERMS

### 1. Condition of the Premises (occupancy principle 1)

The proprietor agrees to provide and maintain the premises so that they are in a reasonable state of repair, are reasonably clean and reasonably secure.

### 2. House Rules (occupancy principle 2)

The resident agrees to comply with the House Rules of the boarding house, which are listed on the attached "Statement of House Rules." House rules may not be inconsistent with the Occupancy Principles stated in Annexure 1, and are not enforceable if they are inconsistent.

### 3. No Penalties (occupancy principle 3)

The resident is not required to pay a penalty for a breach of this Occupancy Agreement or the House Rules.

### 4. Quiet Enjoyment (occupancy principle 4)

The proprietor agrees to take all reasonable steps to enable the resident's quiet enjoyment of the premises.

### 5. Inspections and Access (occupancy principle 5)

The proprietor may inspect boarding house common areas at any reasonable time. Repairs, cleaning and maintenance of common areas can be carried out at reasonable times.

The proprietor may only enter the resident's room, at a reasonable time, with reasonable notice and on reasonable grounds. Agreed access and notice periods are set out below. If the third column is left blank, the suggested notice periods in the second column apply.

| Reason for Access | Suggested notice period (applies if next column left blank) | Notice under this agreement (if different) |
|---|---|---|
| In an emergency, or to carry out emergency repairs or inspections | Immediate access* | |
| To clean the premises | 24 hours | |
| To carry out repairs | 24 hours | |
| To show the room to a prospective resident | 24 hours | |
| To carry out inspections | 48 hours | |

** Immediate access is likely to be necessary in this situation for safety reasons.*

### 6. Notice of Fee Increase (occupancy principle 6)

The resident is entitled to 4 weeks written notice of any increase in the occupancy fee.

### 7. Utility Charges (occupancy principle 7)

The proprietor may charge an additional amount for utilities if the resident is made aware of this on signing this agreement. Details of the charge, including how the charge will be calculated, are included in Annexure 2, and Annexure 2 must be signed and dated by the resident and the proprietor.

Charges for utilities must be based on the cost to the proprietor of providing the utility and a reasonable measure or estimate of the resident's use of that utility.

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### 8. Security Deposit (occupancy principle 8)

A security deposit of $840.00 is payable to the proprietor, this amount being no more than the sum of two (2) weeks occupancy fee. The security deposit is payable on the day the agreement is signed or on the following day. The security deposit will be repaid to the resident (or the resident's authorised representative) within 14 days after the end of this agreement, less any amount necessary to cover:

a) the reasonable cost of repairs to the boarding house or goods within the boarding house, as a result of damage (other than fair wear or tear) caused by the resident or their guest;

b) any occupancy fee or other charges owing and payable under this Agreement or the Boarding Houses Act;

c) the reasonable cost of cleaning any part of the premises occupied by the resident and not left reasonably clean by the resident, having regard to the condition of that part of the premises at the commencement of the occupancy; and

d) the reasonable cost of replacing locks or other security devices altered, removed or added by the resident without the consent of the proprietor.

### 9. Dispute Resolution (occupancy principle 11)

The proprietor and the resident agree to use their best endeavours to informally resolve any disputes between them through reasonable discussion and negotiation. Either party may apply to the NSW Civil and Administrative Tribunal (NCAT) to resolve a dispute about the Occupancy Principles (see Annexure 1).

### 10. Written Receipts (occupancy principle 12)

The proprietor agrees to provide the resident with a written receipt for all money paid to the proprietor, including money paid for occupancy fees, a security deposit and for any utility charges. The receipt should be provided within a reasonable time period after the payment is received.

### 11. Termination (occupancy principles 9 and 10)

The resident is entitled to know why and how this Occupancy Agreement may be terminated, and how much notice will be given before termination. The resident may not be evicted without reasonable written notice from the proprietor.

This Agreement can also be terminated by the resident by written notice given to the proprietor. Agreed reasons for termination and notice periods are set out below. If the third column is left blank, the suggested notice periods in the second column apply.

| Reason for Termination by Proprietor | Suggested notice period (applies if next column left blank) | Notice under this agreement (if different) |
|---|---|---|
| Violence or threats of violence towards anyone living or working in or visiting the premises | Immediate* | |
| Wilfully causing damage to the premises, or using the premises for an illegal purpose | 1 day | |
| Continued and serious breach of this Agreement or the house rules, following a written warning | 3 days | |
| Continued minor breach of this Agreement or the house rules, following a written warning | 1 week | |
| Non-payment of the occupancy fee | 2 weeks | |
| Any other reason, including vacant possession required and "no grounds" termination | 4 weeks | |

** Immediate termination is likely to be necessary in this situation in order to protect other residents and employees.*

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| Reason for Termination by Resident | Suggested notice period (applies if next column left blank) | Notice under this agreement (if different) |
|---|---|---|
| Serious breach of Agreement by proprietor | 1 day | |
| Minor breach of agreement by proprietor | 1 week | |
| No grounds / any other reason | 1 week | |

### 12. Use of the Premises

The resident agrees not to wilfully or negligently cause damage to the premises or to use the premises for an illegal purpose and to respect other residents' rights to quiet enjoyment of the premises.

*NOTE: Any term of this Agreement is not enforceable if it is inconsistent with the Occupancy Principles set out in Schedule 1 of the Boarding Houses Act 2012. The Occupancy Principles are attached at Annexure 1.*

**Signed (Proprietor)**

Date

**Signed (Resident)**

Date

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### Optional Information

The resident may provide contact details to be used in an emergency.

**Personal phone no/s:** 0400000001

**Emergency contact — Name:** Riley Example

**Relationship:**

**Phone and/or address:** 0400000002

**Annexure 1 — Occupancy Principles**

These principles are contained in Schedule 1 of the Boarding Houses Act 2012 and apply to residents of NSW boarding houses covered by the Act.

1. State of premises — A resident is entitled to live in premises that are: (a) reasonably clean, (b) in a reasonable state of repair, and (c) reasonably secure.

2. Rules of the boarding house — A resident is entitled to know the rules of the registrable boarding house before moving in.

3. Penalties for breaches prohibited — A resident may not be required to pay a penalty for a breach of the occupancy agreement or the rules of the boarding house.

4. Quiet enjoyment — A resident is entitled to quiet enjoyment of the premises.

5. Inspections and repairs — A proprietor is entitled to enter the premises at a reasonable time on reasonable grounds to carry out inspections or repairs and for other reasonable purposes.

6. Notice of increase of occupancy fee — A resident is entitled to 4 weeks written notice before the proprietor increases the occupancy fee.

7. Utility charges — The proprietor may charge a resident an additional amount for a utility (electricity, gas, oil, water, or another prescribed service) only if the resident was notified before or when entering the agreement, and the amount is based on the proprietor's cost of providing the utility and a reasonable measure or estimate of the resident's use.

8. Payment of security deposits — A security deposit may be required only if it does not exceed 2 weeks occupancy fee and is payable on or after the day the resident enters the agreement. Within 14 days after the end of the agreement the proprietor must repay it, less amounts necessary to cover: reasonable repair of damage (beyond fair wear and tear) by the resident or an invitee; occupancy fees or charges owing; reasonable cleaning; and reasonable cost of replacing locks/security devices altered without consent. The proprietor may retain the whole deposit if those costs equal or exceed it.

9. Information about occupancy termination — A resident is entitled to know why and how the occupancy may be terminated, including how much notice will be given before eviction.

10. Notice of eviction — A resident must not be evicted without reasonable written notice. In determining reasonable notice, the proprietor may take into account the safety of other residents, the proprietor and the manager (this does not limit other relevant circumstances).

11. Use of alternative dispute resolution — A proprietor and resident should try to resolve disputes using reasonable dispute resolution processes.

12. Provision of written receipts — A resident must be given a written receipt for any money paid to the proprietor or a person on behalf of the proprietor.

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### Annexure 2 — Schedule of Additional Charges

For use only if there are fees or charges in addition to the occupancy fee. This schedule forms part of the Occupancy Agreement when signed and dated by both parties. A receipt must be provided to the resident for all such payments within a reasonable time. Utility charges must comply with Occupancy Principle 7.

| Item | Amount | When due to be paid | How calculated |
|---|---|---|---|
| Electricity | Actual cost | Monthly in arrears | Proprietor cost of supply, apportioned equally among occupied rooms |

**Signed (Proprietor)**

Date

**Signed (Resident)**

Date

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**Statement of House Rules**

The resident agrees to comply with the House Rules of the boarding house. House rules may not be inconsistent with the Occupancy Principles stated in Annexure 1, and are not enforceable if they are inconsistent.

Quiet hours 10pm-7am. Shared kitchen cleaned after use.

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